Statement

Sensitive

Statement in the matter of R v Vida REID

Name	Lisa Mulock
Occupation	Palliative Care Clinical Nurse Specialist
Address	Known to National Disability Insurance Scheme (NDIS)
Date	17 October 2022

STATES:

1. This statement made by me accurately sets out the evidence that I would be prepared, if necessary, to give in court as a witness.

2. My full name is Lisa Mulock. I am 49 years of age.

3. My residential address is known to the National Disability Insurance Scheme.

4. I am the mother and nominee of NDIS Participant Bekki Mulock. (NDIS no. 430901389) Bekki is eligible for the scheme because she has a diagnosis of Autism. Bekki requires assistance with money, activities of daily living, cooking, shopping and functional everyday tasks and employment.

5. On 17 October 2022 I had a discussion with NDIA Investigator James Lane regarding one of Bekki's previous providers called Forward Focus Group (FFG).

6. I located FFG because they were recommended to me by a young lady named Cara in February 2021. Cara worked for APM. She said they would be perfect for Bekki. I phoned them on the number that was given to me, and I spoke to a lady named Vida, and she told me what services she can provide for Bekki.

7. A girl named Chloe came to my house on 27 August 2021 for us to put together a service agreement. It initially sounded quite good. Chloe stated that FFG was going

to do this, this and this for us after filling her in on what we needed and it sounded good, but after we signed the service agreement and it was a lengthy conversation, it opened up some old emotional wounds and Chloe said we would be able to get counselling, but the waiting list was about 18 months. It was about a two-hour appointment. At one point Chloe also said that we could go to Margarete River or Crown Casino for a weekend and it would be taken out of Bekki's plan for respite.

EXHIBIT: I NOW PRODUCE THE SERVICE AGREEMENT FOR BEKKI IN RELATION TO THE ABOVE CONSISTING OF 8 PAGES. ANNEXURE LM001.

8. We got no services from FFG. I called FFG two or three weeks later and was told by a man named Blake that Chloe had left within two weeks of coming out to see me. They were really forceful about making some appointments, and there were three or four occasions when you rescheduled work to be available and no one came. When I called FFG to talk about this I was greeted with hostility.

9. On 7 December 2021 I received an email from FFG Support Coordinator Sally See asking me whether Bekki would be interested in going on a New Years Eve cruise. I replied that Bekki was still waiting for therapy and supports for, and that if they weren't arranged soon, I would have no choice but to look for other providers. Bekki needed supports but they were just offering cruises and flower arranging.

EXHIBIT: I NOW PRODUCE THE EMAIL IN RELATION TO THE ABOVE CONSISTING OF ONE PAGE. ANNEXURE LM002.

10. On 24 January 2022 I emailed Tania Hendrikse from the NDIS about my concerns with FFG as a worker named Honey NGUYEN had contacted me on 12 January 2022 asking me if Bekki would like to go on an $800 per person Valentine's Day cruise. I then got a phone call from Honey asking if she can book Bekki onto the cruise. Honey said that there would no out of pocket expense and it would all come out of Bekki's plan.

EXHIBIT: I NOW PRODUCE THE EMAIL IN RELATION TO THE ABOVE CONSISTING OF ONE PAGE FRONT AND BACK. ANNEXURE LM003.

11. On 25 January 2022 I replied to an email sent to me by NDIS worker Tania Hendrikse who gave me a breakdown of the Support Coordination funding that had been drawn down on from Bekki's plan. Specifically, 2.5 hours which may have been when Chloe came out, but no other services had been provided.

EXHIBIT: I NOW PRODUCE THE EMAIL IN RELATION TO THE ABOVE CONSISTING OF TWO PAGES. ANNEXURE LM004.

12. In the last week of January 2022, I spoke with Tania Hendrikse and asked her to cease services with FFG on my behalf as Vida had been contacting me outside of business hours, sometimes as late as 10pm, and what I felt was trying to force me into receiving services. I ended up having to block Vida all together in late January. There was no professional boundaries. There was a guy named Simon REID who I think wanted to take over from Blake but I wasn't interested in FFG at all by then.

13. After this I've had phone calls from withheld numbers and my work number, which was given to them in my initial meeting, but only to be used in an emergency if Bekki was out in their care.

14. James Lane informed me that on 28/10/2021 FFG had claimed against Bekki's NDIS plan for 31 hours of cleaning services totalling $1,556.20 and asked me to comment.

15. I'm speechless. We did not get anything; we never had any cleaning. That's just terrible.

16. James Lane informed me that on 7/11/2021 FFG had claimed against Bekki's NDIS plan for 31 hours of cleaning services totalling $1,528.30 and asked me to comment.

17. Bastards. I'm furious, that's bloody disgusting. Never has it been in any of Bekki's plans that she needs cleaning. She lives with me, I do it. All I wanted for Bekki was for someone to provide her with the supports for employment and life skills for travelling and cookery.

18. James Lane informed me that services have been claimed against Bekki's plan from Provider Choice Plan Management in relation to Support Coordination and asked me to comment.

19. I've never heard of them, and I have no idea who they are. I've been paying invoices out of my own bank account, and I've never received any services or had any contact with anyone from Provider Choice Plan Management.

20. This statement is true to the best of my knowledge and belief. I have made this statement knowing that, if it is tendered in evidence, I will be guilty of a crime if I have wilfully included in the statement anything that I know to be false or that I do not believe is true.

Signature LMulock
Lisa Mulock

Statement taken and signature witnessed by me about 3:15pm on 17 October 2022 at Golden Bay in Western Australia.

Signature
James Lane
Golden Bay

ANNEXURE LM601

FORWARD FOCUSED

Document created: 1.11.2020
Updated:25.11.2020

Forward Focused Individual Service Agreement – NDIS Support Coordination

This Service Agreement is for a participant in the National Disability Insurance Scheme and is made between:

Participant/Participant's representative	**Bekki Mulock / Lisa Mulock**

AND

Provider	**Forward Focused Group (FFG)**

(each a **Party** and together the **Parties**)

For the provision of services to:

Participant	**Bekki Mulock**
Participant Plan Number	**430901389**
Service/plan Dates	29 March 2021 29 March 2022

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The NDIS and this Service Agreement

This Service Agreement is made for the purpose of providing support services (**Supports** or **Services**) under the Participant's National Disability Insurance Scheme (**NDIS**) Plan.

The Parties agree that this Service Agreement is made in the context of the NDIS, which is a scheme that aims to:

- Support the independence and social and economic participation of people with a disability; and
- Enable people with a disability to exercise their choice and control in pursuit if their goals, and the planning and delivery of their supports.

The terms and conditions contained in this Service Agreement (as varied from time to time in writing) will apply to any Services provided by FFG.

Glossary of Terms

FFG means the provider of Services under this agreement (otherwise known as **we** or **us**).

NDIA means the National Disability Insurance Agency.

Service Agreement means this agreement and any attached documents or schedules.

You means a person who is a receiver of Services or a person such as a family member or friend who has authority to act on behalf of the service recipient under the National Disability Insurance Scheme, as the context requires.

1. FFG's responsibilities

We will use our best efforts to:

(a) Provide the Services described in clause 4 of this Service Agreement, and/or the attached Schedule of Services, as varied from time to time;

(b) Plan with you for the provision of the Services as outlined in your NDIS plan;

(c) Consult with you about how Services will be provided and times for these Services;

(d) Review the provision of your Services quarterly;

(e) Communicate any changes, and discuss with you any barriers, to delivering any Supports or Services as per the plan, including those outside of our control;

(f) Provide you with information about our procedure for the reporting and management of complaints;

(g) Provide you with details of our Cancellation Procedure – See Point 6.

(h) Provide a minimum of 24 hours' notice where possible, when we have to change a scheduled appointment to provide the Services;

(i) Comply with all rules and regulations regarding the privacy of your personal information;

(j) Keep accurate records on the Services provided to you;

(k) We only work 9 am to 5 pm Monday to Friday. We will not respond to sms or calls after or before these hours.

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(l) We can only link you to supports that fall into the guidelines of the NDIS act 2013 of reasonable and necessary criteria.

(m) Our job is not case management as we are support coordinators. We will only connect you to the supports you ask us to and link you to them.

(n) We ask that you have realistic expectations and work with us to achieve a good outcome.

(o) Provide the Services in a manner consistent with all relevant laws, including the National Disability insurance Scheme Act 2013, and the Australian Consumer Law; and (l) Provide you with regular statements of the Services we deliver to you.

(p) We will not provide transport assistance, pick or drop you off to places as that is outside of our role. We will only meet you where you have asked us to and then leave. Most of our work will be done over the phone as we are here to connect you to supports. We are not support workers.

(q) From time to time as required we may have to work with other organisations for our complex case clients and as such we will also charge the costs incurred for sourcing additional supports.

2. Your obligations

You agree that, during the duration of this Services Agreement, you will:

(a) Inform us of how you would like your Services to be provided by us to meet your needs;

(b) Always treat FFG Support Coordinators with courtesy and respect.

(c) Communicate with FFG Support Coordinator if you have any concerns about the Services being provided in accordance with our procedure for the reporting of complaints.

(d) Comply with all of the terms of this Services Agreement; and

(e) Immediately inform FFG Support Coordinator if your NDIS plan is suspended or replaced by a new NDIS plan or if you stop being a participant in the NDIS.

(f) Not ask us to provide supports outside of our role.

3. NDIS plan outcomes

Support type	Outcome
Support Coordination	**Assistance to strengthen Bekki's ability to coordinate and implement supports, strengthen their broader system of support and coordinate a range of both funded and other government services.**
Finding and Keeping a Job	**Assistance to assist Bekki in finding and keeping suitable employment**

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4. Services

The Services to be delivered by FFG in this Services Agreement set out below and will be limited to the type and level of the funding allocated to FFG in your NDIS plan.

FFG will not provide any Services or Supports that exceed the level of funding allocated to FFG in your NDIS plan.

All fees or charges for Services or Supports under this Services Agreement will be in accordance with the NDIS Price Guide. **Capacity Building budget**

Support Coordination is included in the Capacity Building budget. This is a fixed amount for strengthening participants' abilities to co-ordinate and implement supports in their plans and to participate more fully in the community.

Support type	Cost	Support delivered When/Where/How
Level Support Coordination	$2002.80	As agreed and balance to come out of my Capacity Building Supports funding of my NDIS plan
Finding and Keeping A job	$ 9,481.50	Finding and Keeping a Job (CB Employment)

FFG Support Coordinator Responsibilities subject to your funding

- Provide information and supports that may be available to you
- Ensure that you have genuine choice and control of your NDIS plan
- Support you in resolving service delivery issues
- Regular management of your supports throughout your NDIS plan
- Develop and collating reports for reviews

5. Reports

FFG is required to provide report(s) to the NDIA 6 weeks before your plan is due for review. The report will document how the Services provided by FFG have contributed to the achievement of goals in your NDIS plan as well as provide recommendations to inform your future NDIS plan. **6. Cancellations**

(a) If:

i. a Service is less than 8 hours' continuous duration; and

ii. the total price for the Service is less than $1,000.00

then you must provide at least 2 clear business days' notice to cancel or reschedule that Service.

(b) For any other Services, you must provide at least 5 clear business days' notice to cancel or reschedule that Service.

(c) If you do not provide the notice required under this clause, we may charge you up to 90% of the charge for that cancelled or rescheduled Service.

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7. Occupational Safety and Health

An Occupational Safety and Health Assessment Report of your premises may be completed and provided by FFG. A copy will be kept in the FFG file at your residence if required.

An Individual Care Plan and Service Planner can be completed by FFG staff and kept on file at your residence (if applicable).

8. Payment for the Services

The Services provided by FFG must be paid to FFG by:

(a) NDIA

(b) the Participant, if your NDIS plan is self-managed; or (c) **a nominated plan manager if** your NDIS **plan** is **managed**.

[delete/cross out whichever is not applicable].

If you or your nominated plan manager are responsible for payment of the Services:

(a) FFG will issue fortnightly invoices for the Services; and

(b) Payment for the Services must be made within 14 days of the date of each invoice.

You may also request an activity statement at any time.

Where the Services are paid by the NDIA:

(a) FFG will issue weekly invoices to the NDIA.

(b) The pricing in your plan is inclusive of the time required for all activities related to the Service including assessment, planning and preparation, liaison, report writing, training, direct contact (e.g. face to face, phone, teleconference, skype, email) and indicate the potential hours for assessment, planning and intervention. For example, NDIS will pay for a physiotherapist to write a report to NDIA, or for the time taken to liaise with other service providers/health professional regarding your care/services or research on your behalf.

(c) If the NDIA change the price payable to service providers for the Services:

   a. your plan will be automatically adjusted to account for the increase in prices; and

   b. we may increase the prices we charge to you in accordance with any corresponding increase in the prices payable to service providers by the NDIA.

(d) There can be a delay in between the expiry of this plan and the completion of a new service agreement for your renewed plan. FFG will continue to provide Services in accordance with this Service Agreement after the expiry date of your current plan to ensure continuity. If you decide to use another service provider for your renewed plan, please notify FFG of this immediately. You will need to ensure that FFG receive payment for the Services during this period, in accordance with this Service Agreement.

(e) If you receive notification that the NDIA has, for whatever reason, withdrawn funding for the Services, you must notify FFG within 7 days. If you do not notify FFG within 7 days, you may be personally be liable for payment of any Services provided by FFG.

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9. Provider Travel

We will charge you for travel in accordance with the NDIS Price Guide, as amended from time to time.

10. Changes to this Service Agreement

If changes to the Services, or their delivery, are required, FFG and the Participant agree to discuss and review this Service Agreement.

From time to time, FFG can make alterations to this Service Agreement due to changes in the policy and procedure of the NDIA.

FFG and the Participant agree that any changes to this Service Agreement will be in writing.

11. Ending this Service Agreement

Either Party may terminate this Service Agreement by giving the other Party one month's notice in writing.

12. Feedback, Complaints and Disputes

Feedback, complaints and disputes The FFG welcomes feedback.

How to raise your concerns and complaints:

1. Tell your support staff or your case manager. This is often the quickest way to address and resolve your concerns.
2. You can also raise your concerns and complaints with the Manager of the service.
3. FGG's website https://forwardfocusedgroup.com.au also has a Feedback Form you can complete. This form will be sent to the FFG's Manager Policy, Planning & Development.

If you are not satisfied or do not want to talk to this person, you can contact the National Disability Insurance Agency by calling **1800 800 110**, visiting one of their offices in person, or visiting the website **ndis.gov.au** for further information.

13. Goods and Services Tax (GST)

All prices are GST inclusive (if applicable).

For the purposes of GST legislation, you agree that:

The Services described in this Service Agreement are reasonable and necessary supports specified in the statement of supports in the Participant's NDIS plan currently in effect under section 37 of the *National Disability Insurance Scheme Act 2013*;

The Participant's NDIS plan is expected to remain in effect during the period the Services are provided; and

The Participant/Participant's representative will immediately notify the FFG if the Participant's NDIS Plan is replaced or the Participant stops being a participant in the NDIS.

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14. Acknowledgement

Participant/Participant's representative agrees that this agreement has been explained and agrees to receive the Services from FFG on the terms and conditions set out in this Service Agreement.

Signed by:

Name: Signature: Bekki Mulock / Lisa Mulock

Bekki Mulock

[Participant / Participant's representative]

[Participant / Participant's representative]

Mulock

Date:

Name:

Signature: _____

Authorised person from FFG

Authorised person from FFG

Date:

FFG contact details:

FFG Address	**Perth Metropolitan**
Contact Name	**Vida Reid**
Contact Number	**0478889648**

FFG/NDIS Service Agreement check list

- ☑ I understand what is expected of me
- ☑ I understand what is expected from FFG
- ☑ I understand what services I have agreed for FFG to deliver
- ☑ I understand what services will be delivered by FFG and how they will be charged
- ☑ I understand what to do if I want to make changes to this Service agreement
- ☑ I understand what is expected of me if I want to make changes to my services
- ☑ I understand what is expected of me if I want to end this Service agreement
- ☑ I understand what to do if I have a problem and I know who to contact
- ☑ I have signed the Service agreement acknowledgement
- ☑ I have provided FFG a copy of my NDIS plan

☑ I have a copy of this Service agreement for my records or a copy will be sent to me

I have completed this checklist and by signing here indicate that I understand this Service Agreement

Name: Bekki Mulcok / Lisa Mulock Signature: Bekki Mulock

[Participant / Participant's representative] *[Participant / Participant's representative]*

Lmulock

Date:

ANNEXURE LM002

Lane, James

From: lisa mulock <lisamulock@icloud.com>
Sent: Tuesday, 11 October 2022 3:27 PM
To: Lane, James
Subject: Fwd: Expression of Interest: New Year Eve Cruise

You don't often get email from lisamulock@icloud.com. Learn why this is important

FYI

Lisa

Begin forwarded message:

> **From:** lisa mulock <lisamulock@icloud.com>
> **Date:** 7 December 2021 at 15:23:59 AWST
> **To:** Sally S <sally.s@ffg.net.au>
> **Subject: Re: Expression of Interest: New Year Eve Cruise**
>
> Hi Sally
>
> Thanks for the email.
> We are still waiting to hear about employment services and bekkis therapy. Chloe came over and then blake called and said she had left . I've tried 2 times to call blake. If we can't get these things up and running. I will have no choice but to look for other providers so Bekki can utilise her plan.
>
> Regards
> Lisa
>
> On 7 Dec 2021, at 14:18, Sally S <sally.s@ffg.net.au> wrote:
>
> Hi Lisa,
>
> I am Sally, support coordinator for Forward Focused Group, how are you? I attempted to call you today to see if Bekki would be interested to join our New Year Eve Cruise on 31st December 2021 on Swan River?
> As we do not have the specific details yet, I am only collecting an expression of interest. 😊 Please reply to let me know if she would be interested in joining our cruise and watching the New Year's fireworks with us!
>
> *Best Regards,*
>
> **Sally See** (She/Her)
> Support Coordinator at Forward Focused Group
> **A:** 2/210 Jull Street, Armadale, WA 6112 [Next to Dome Café]
> **M:** 0478-864-273
> **E:** sally.s@ffg.net.au
> **W:** https://forwardfocusedgroup.com.au

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ANNEXURE LM003

Lane, James

From: lisa mulock <lisamulock@icloud.com>
Sent: Tuesday, 11 October 2022 3:26 PM
To: Lane, James
Subject: Fwd: Valentines Day Cruisse on the Crystal Swan Sunday 13 February 2022

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FYI

Lisa

Begin forwarded message:

> **From:** lisa mulock <lisamulock@icloud.com>
> **Date:** 24 January 2022 at 15:38:36 AWST
> **To:** Tania Hendrikse <Tania.Hendrikse@ndis.gov.au>
> **Subject: Fwd: Valentines Day Cruisse on the Crystal Swan Sunday 13 February 2022**
>
> Please see attached email regarding our conversation
>
> Lisa x
>
> Begin forwarded message:
>
> > **From:** lisa mulock <lisamulock@icloud.com>
> > **Date:** 12 January 2022 at 10:32:31 AWST
> > **To:** Honey Nguyen <honey@ffg.net.au>
> > **Subject: Re: Valentines Day Cruisse on the Crystal Swan Sunday 13 February 2022**
> >
> > Hi Honey
> >
> > $800 per person?
> >
> > Thanks but no that's incredibly expensive
> >
> > Lisa
> >
> > Sent from my iPad
> >
> > > On 12 Jan 2022, at 10:27 am, Honey Nguyen <honey@ffg.net.au> wrote:
> > >
> > > Dear Bekki ,
> > >
> > > I am writing to invite you & family to spend Valentines day on our Sea Dream Cruise Sunday 13th Feb 11am to 3pm 💝🌹
> > >
> > > Let's make this year Valentines Day special , celebrating love, friendship and appreciation on the famous Crystal Swan cruise , we have

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- Food Provided
- Custom made Valentines day Cake by Cake Paradise
- Performance by the one & only Michelle Harpist
- Comedian
- Romantic flower arrangements by Rosey Arrangements
- Belly Dancers
- DJ to play light music (please bring your own ear muffs if you require due to sound/noise sensitivity)
- Support Staff available on Cruise

Price is $800 per person. Please let me know if you would like to attend and if you need further clarification.

Looking forward to hearing from you.

<image002.jpg>

<image003.png>

Honey Nguyen
PA To Founding Executive Director
at Forward Focused Group

A 2/210 Jull street, Armadale, WA 6112
[Next to Dome Cafe]
P 08-61177786 **M 0478 894 041**
E honey@ffg.net.au
W https://forwardfocusedgroup.com.au

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ANNEXURE LM004.

Lane, James

From: lisa mulock <lisamulock@icloud.com>
Sent: Tuesday, 11 October 2022 3:20 PM
To: Lane, James
Subject: Fwd: B Mulock NDIS #430901389 [SEC=OFFICIAL]

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Hi James

FYI

Lisa

Begin forwarded message:

> **From:** lisa mulock <lisamulock@icloud.com>
> **Date:** 25 January 2022 at 11:33:16 AWST
> **To:** "Hendrikse, Tania" <Tania.Hendrikse@ndis.gov.au>
> **Subject: Re: B Mulock NDIS #430901389 [SEC=OFFICIAL]**
>
> Hi Tania
>
> This is fraudulent how can they charge for nothing? The 2.25 hours on the 19/1/22 ??
>
> Oh my goodness
>
> Lisa x
>
> > On 25 Jan 2022, at 11:23, Hendrikse, Tania <Tania.Hendrikse@ndis.gov.au> wrote:
> >
> > Hi Lisa,
> >
> > As discussed, below is a break down of the Support Coordination funding that has currently been drawn from Bekki's funding:
> >
> > Date – 19/01/2022
> > Payment Request Number - 197589053
> > Claim Type – Direct Service
> > Claimed Amount - $225.32
> > Quantity: 2.25 hours
> >
> > Date – 06/01/2022
> > Payment Request Number – 195108730
> > Claim Type – Direct Service
> > Claimed Amount - $75.11
> > Quantity: 0.75 hours
> >
> > Date – 06/01/2022
> > Payment Request Number – 195108737
> > Claim Type – Direct Service

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Claimed Amount - $25.04
Quantity: 0.25 hours

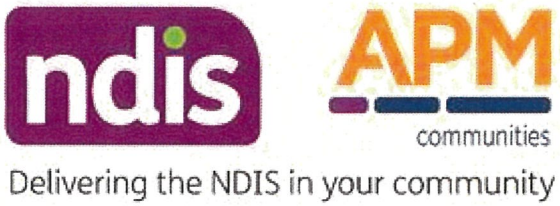
Date – 06/01/2022
Payment Request Number – 195108732
Claim Type – Direct Service
Claimed Amount - $75.11
Quantity: 0.75 hours

Kind Regards

Tania Hendrikse

APM - Local Area Coordinator
Mobile: 0438 159 680

National Disability Insurance Scheme Partner delivering Local Area Coordination services
T: 1300 276 522 Email: APMNET@ndis.gov.au



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